

663(a).

The court agrees that the Plaintiff's motions are the equivalent of a Motion for Reconsideration under CCP § 1008. However, Plaintiff has failed to seek reconsideration within ten days of the order of dismissal, as required by the statute. In addition, Plaintiff fails to assert "new or different facts, circumstances, or law," as required by Section 1008.

Plaintiff's Motion to Set Aside Dismissal, and Motion to Vacate Orders and Sanctions are **denied**.

2. 9:00 AM CASE NUMBER: C22-02814
CASE NAME: NA WANG VS. SETH WIENER
HEARING IN RE: TO VACATE ORDER AND SANCTIONS / CONTD FROM 6/26/2026 PER M/O OF 6/26/2026
FILED BY: WANG, NA
TENTATIVE RULING:

See Line 1.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
*HEARING ON MOTION IN RE: TO TRANSFER AND CONSOLIDATE CASES
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiffs Aleksandra Kaczmarczyk (aka Schakanovich), Hasan Schakanovich, and Aldvin Schakanovich's Motion to Transfer and Consolidate Cases.

Plaintiff's Request for Judicial Notice of the Order After Hearing of the Stanislaus County Superior Court is **granted**. (Evid. Code §452 (d).) The Court can and will take judicial notice of the existence of the documents, as well as the truth of facts asserted therein as it is an Order of another court. (*Magnolia Square Homeowners Ass'n v. Safeco Ins. Co.* (1990) 221 Cal.App.3d 1049, 1056.)

Factual and Procedural Background

This action relates to issues surrounding the purchase of residential property located at 11 Halten Court (the "Property") by Plaintiffs in March 2022.

Plaintiffs filed the initial complaint in this matter on October 20, 2023. Defendant Linda Williams was the seller's real estate agent for the transaction. Ms. Williams was employed by Defendant California Compass II, Inc. at all relevant times. (Ms. Williams and Compass California will be referred to as the "Compass Defendants".) The gist of the allegations relates to claims of defects in the Property related to water intrusion and determining who was responsible for disclosing issues related thereto.

One year later, on October 15, 2024, Plaintiffs Aleksandra and Aldvin Schakanovich filed a verified petition in Stanislaus County Superior Court (case no. PR-21-001379) asserting claims arising from a rejected creditor's claim against the Mary Jessie Swanson Revocable Trust (the "Stanislaus Matter"). The Trust had been established in December 2014. The Property was transferred into the Trust shortly thereafter. In December 2021, the trustee of the Trust, petitioned the Stanislaus Court for authorization to sell the Property – which was granted. The sale occurred in March 22 – the sale being the one at issue in this proceeding. It is alleged that the trustee represented there were no material defects in the Property.

Plaintiffs/Petitioners filed a creditor's claim against the Trust, which was rejected in July 2024. That rejection led to the filing of the petition in October 2024. Given that the two cases pertain to the same Property and the same allegations of failure to disclose material defects, Plaintiffs now move to have the Stanislaus Matter transferred to Contra Costa and consolidated with this matter.

Standard

Code of Civil Procedure 403 states, in pertinent part:

A judge may, on motion, transfer an action or actions from another court to that judge's court for coordination with an action involving a common question of fact or law within the meaning of Section 404. ... The court to which a case is transferred may order the cases consolidated for trial pursuant to Section 1048 without any further motion or hearing.

Code of Civil Procedure § 1048 provides:

When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated

and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

The decision to consolidate is left to the sound discretion of the trial court based on its assessment of various factors, including whether there are common issues of fact or law, and even if there are, whether other factors, such as potential prejudice to one or more parties, delay, confusion or other considerations do not warrant consolidation. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."])

Analysis

Transfer

A motion to transfer shall be “supported by a declaration stating facts showing that the actions meet the standards specified in Section 404.1, are not complex as defined by the Judicial Council and that the moving party has made a good faith effort to obtain agreement to the transfer from all parties to each action.” In determining whether to transfer a matter, the Court must find that the transfer “will promote the ends of justice, with reference to the following standards:

- (1) The actions are not complex;
- (2) Whether the common question of fact or law is predominating and significant to the litigation;
- (3) The convenience of the parties, witnesses, and counsel;
- (4) The relative development of the actions and the work product of counsel;
- (5) The efficient utilization of judicial facilities and staff resources;
- (6) The calendar of the courts;
- (7) The disadvantages of duplicative and inconsistent rulings, orders, or judgments; and
- (8) The likelihood of settlement of the actions without further litigation should coordination be denied.

After reviewing the declaration of counsel and examining the matters presented in the

case, the Court finds that the actions are not complex under the parameters set forth in California Rules of Court 3.400. It is also evident that there are common questions of law and fact that predominate the actions. It would also be more convenient for both the Court and the parties and witnesses for these two actions to move forward in Contra Costa. Given how far this matter has progressed, it is also an efficient use of the Court's resources for the two matters to proceed together in this Court – which will also alleviate any concerns regarding possible inconsistent rulings or orders. Additionally, if there is to be a settlement of these claims – the likelihood of a full resolution of all issues is increased if the two cases are consolidated before this Court.

Good Faith Effort to Obtain Agreement to Transfer

As part of the request to transfer, the moving party must submit a declaration that it made a 'good faith effort to obtain agreement to the transfer from all parties to each action.' (Code Civ. Proc. § 403.) Plaintiff's counsel's declaration indicates that he emailed all counsel in both actions regarding the transfer and consolidation and, to his knowledge, "all Parties to both matters pending in each County have consented to transfer and consolidation." (Wayland Decl. ¶ 14-15.) He attaches the email communication to his declaration. (*Id.* at Ex. 2.)

The email includes a response from Christi Raimondi, counsel for the trustee of the Trust, which indicates that she agreed the two matters should be consolidated, and that she was "pretty sure that the proper jurisdiction is in Contra Costa County since the court there acquired jurisdiction over the matter first." (*Ibid.*) She does note, however, that the parties 'argued the jurisdiction issue before the court in Stanislaus County a few months ago [and the Stanislaus] court found jurisdiction was proper in Stanislaus County."

It appears that the Stanislaus Court, however, changed its ruling. On Reply, Plaintiffs submit an Order After Hearing from the Stanislaus Court which indicates that the Court "finds and **ORDERS** as follows:

- (1) Venue in Stanislaus County is not appropriate. Venue is appropriate in Contra Costa County. Counsel for Petitioner shall file the necessary paperwork to have this matter transferred to Contra Costa County and pay transfer fees.
- (2) Counsel for Petitioner to submit an order after hearing.
- (3) This matter shall be continued for Thursday, August 20, 2026, at 8:30 a.m., in Dept. 22 for compliance hearing regarding confirmation of transfer to Contra Costas County." (RJN Ex. 1.)

The above support's this Court's determination that the Stanislaus Matter should be

transferred to Contra Costa. In fact, it confirms that the Stanislaus Court has already ordered the matter transferred to Contra Costa.

Consolidation

The issues raised in the two actions involve common question of law and fact. It would be in the best interests of the Court as well as the Parties to have the two actions consolidated for all purposes.

Conclusion

Plaintiff's motion to transfer the Stanislaus Matter to Contra Costa County Superior Court is **granted**. Once transferred, the Stanislaus Matter will be consolidated with this action.

4. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
*HEARING ON MOTION IN RE: RECOGNIZE SATISFACTION OF SANCTIONS OBLIGATION
FILED BY: MATERAZO, MATTHEW C.
TENTATIVE RULING:

The parties stipulated and the court ordered that this hearing be **continued** to December 4, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C24-02492
CASE NAME: THOMAS KM, LLC VS. KELLY-MOORE PAINT COMPANY, INC.
*HEARING ON MOTION IN RE: ASSIGNMENT ORDER CCP 708.150
FILED BY: THOMAS KM, LLC
TENTATIVE RULING:

The Plaintiff's unopposed motion for Assignment Order is granted.
The court will sign the Proposed Assignment Order lodged with the court on March 19, 2026.

6. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: SHAHI, GOVIND K.
TENTATIVE RULING:

Introduction

Before the Court is Defendants GOVIND K. SHAHI; SUSHOVAN SHAHI; SUSHMINA